FICTITIOUS SAMPLE ORDER - FOR SOFTWARE DEMONSTRATION ONLY
(Not a real judgment. All names, numbers and facts are invented.)

IN THE INCOME TAX APPELLATE TRIBUNAL
'D' BENCH, EXAMPLEPUR

BEFORE SHRI A. SAMPLE, JUDICIAL MEMBER
AND SHRI B. EXAMPLE, ACCOUNTANT MEMBER

ITA No. 999/EXP/2025
Assessment Year: 2018-19

Demo Traders Private Limited ..... Appellant
Vs.
Deputy Commissioner of Income Tax, Circle 1(1), Examplepur ..... Respondent

Date of hearing: 02.09.2026
Date of pronouncement: 15.09.2026

ORDER

Per A. Sample, JM:

1. This appeal by the assessee is directed against the order of the Commissioner of Income Tax (Appeals) dated 10.03.2025 for Assessment Year 2018-19.

2. The only effective ground is against the addition of Rs. 1,25,00,000 made under section 68 of the Income-tax Act, 1961 in respect of unsecured loans received from two lenders.

3. Briefly stated, the assessee filed its return of income declaring total income of Rs. 42,10,500. During assessment the Assessing Officer issued notices under section 133(6) to the two lenders. The Assessing Officer held that the identity and creditworthiness of the lenders were not established because the notices were not answered.

4. Before us, the learned counsel for the assessee submitted that the assessee had filed the PAN, bank statements, income-tax returns and confirmations of both lenders, and that the loans were received and repaid through banking channels in the next financial year.

5. The learned Departmental Representative relied on the orders of the lower authorities.

6. We have heard the rival submissions and perused the material on record. The assessee has discharged the primary onus cast upon it under section 68 by furnishing the identity, creditworthiness and genuineness of the transactions. The mere non-response to notices under section 133(6) cannot by itself be a ground for addition when the documents on record are not shown to be false.

7. In view of the above, we hold that the addition of Rs. 1,25,00,000 made under section 68 is not sustainable and the same is directed to be deleted. Ground No. 1 is allowed.

8. In the result, the appeal of the assessee is allowed.

Order pronounced in the open court on 15.09.2026.

Sd/- A. SAMPLE, JUDICIAL MEMBER Sd/- B. EXAMPLE, ACCOUNTANT MEMBER

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